

CHAPTER 42

An Act to prohibit the sale or letting of certain heating appliances without an effective fireguard; and for purposes connected therewith. [1st August, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. If any person in the course of a business sells, or lets under a hire-purchase agreement or on hire, or offers or exposes for sale, or for letting under a hire-purchase agreement or on hire, any appliance required by regulations under this Act to be fitted with a guard, and either the appliance is not fitted with a guard or the guard does not comply with the standards prescribed for it by the regulations, he shall be guilty of an offence, unless—

Prohibition of sale or letting of unguarded electric fires, gas fires or oil heaters.

- (a) he does so as the agent of a person who is not acting in the course of a business or as the servant of such an agent; or
- (b) he reasonably believes that the appliance will not be used in Great Britain; or
- (c) in the case of a letting on hire, the letting is incidental to the letting of premises; or
- (d) in the case of a letting under a hire-purchase agreement, he had at no time possession of the appliance and only became the owner thereof at the time of entering into the agreement; or
- (e) in the case of any letting, the letting was lawful at the time the hirer or the hirer's predecessor in title obtained possession of the appliance.

2.—(1) A local authority may authorise in writing any of its officers to inspect and test appliances required by regulations under this Act to be fitted with guards, and any person so authorised may, on producing if required his authority, inspect any such appliances kept on any premises in the area of the authority for the purpose of being sold or let in the course of a business and may test their guards in such manner as may be prescribed by the regulations.

(2) Any person who wilfully obstructs any person in the exercise of his powers under this section shall be guilty of an offence.

Offences.

3.—(1) A person guilty of an offence under this Act shall be liable on summary conviction to a fine not exceeding fifty pounds.

(2) Where an offence under this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person purporting to act in any such capacity, he as well as the body corporate shall be deemed to be guilty of the offence.

In this subsection, the expression “director”, in relation to any body corporate which is established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking and whose affairs are managed by its members, means a member of that body.

Power of local
authority to
prosecute.

4. A local authority in England or Wales may institute proceedings for any offence under this Act committed in the area of the authority.

Regulations.

5.—(1) The Secretary of State may make regulations for the purposes of this Act requiring gas fires, electric fires and oil heaters of such descriptions as may be specified in the regulations to be fitted with guards and prescribing for such guards such standards of construction and fitting as are in his opinion appropriate to reduce or prevent the risk of fire or injury resulting from accidental contact with, or proximity to, flames or heating elements.

(2) Any such regulations may prescribe different standards for guards fitted to different descriptions of gas fires, electric fires or oil heaters and may prescribe the means to be used for ascertaining for the purposes of this Act whether any such guards comply with the standards so prescribed for them.

(3) Any such regulations may contain such provisions as appear to the Secretary of State necessary or expedient for authorising the sale or letting of appliances manufactured before the coming into operation of the regulations or for authorising the sale or letting of any appliances for such purposes as may be specified in the regulations.

Exercise of
power to make
regulations or
an order under
s. 8.

6.—(1) The power of the Secretary of State to make regulations under this Act and his power to make an order under section eight of this Act shall be exercisable by statutory instrument.

(2) Any statutory instrument made under this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

7. In this Act the following expressions have the following Interpretation. meanings:—

- “local authority”, as respects England and Wales, means the council of a county borough or a county district, the council of a metropolitan borough, or the Common Council of the City of London, and, as respects Scotland, means a county or town council;
- “hire-purchase agreement”, as respects England and Wales, has the same meaning as in the Hire-Purchase Act, 1938, 1 & 2 Geo. 6. and, as respects Scotland, means a contract to which the c. 53. Hire Purchase and Small Debt (Scotland) Act, 1932, 22 & 23 Geo. 5 applies or would apply if the appliance forming the c. 38. subject of the contract did not exceed twenty pounds in value; and, as respects Scotland, references to letting under a hire-purchase agreement and to a hirer under such a letting shall include references to an agreement to sell under a contract to which the said Act of 1932 applies and to a purchaser under such an agreement respectively.

8.—(1) This Act may be cited as the Heating Appliances Short title, (Fireguards) Act, 1952. commencement and extent.

(2) This Act shall come into operation on such day as the Secretary of State may by order appoint.

(3) This Act shall not extend to Northern Ireland.

CHAPTER 43

Disposal of Uncollected Goods Act, 1952

ARRANGEMENT OF SECTIONS

Section

1. Right of bailees to sell goods accepted for repair or other treatment but not re-delivered.
2. Notices.
3. Procedure after sale.
4. Supplemental provisions.
5. Special provisions applicable to certain cases of goods accepted before the commencement of this Act.
6. Application to Scotland.
7. Short title and extent.